

		path falls under section 831.4. Therefore, the demurrer is sustained with leave to amend.
11.	GOVEA VS. CITY OF FULLERTON 2023-01360733	DEMURRER TO SECOND AMENDED CROSS-COMPLAINT Cross-defendant United Specialty Insurance Company's (USIC) demurrer to Defendant/cross-complainant City of Fullerton's (City) Second Amended Cross-Complaint is SUSTAINED without leave to amend. USIC demurs to the first, third, fourth, fifth, sixth, seventh, eighth, ninth, and tenth causes of action on the following grounds: (1) Plaintiff's alleged injury occurred outside the policy period and (2) the City has no standing to pursue a claim against USIC. <u>The Parties' Non-Compliance with California Rules of Court, Rule 3.1113, Subdivision (d)</u> "Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages" and "no reply or closing memorandum may exceed 10 pages" not including the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities, or the proof of service. (Cal. Rules of Court, rule 3.1113, subd. (d).) The City's opposition is 19 pages, and Plaintiff's reply is 11 pages in violation of rule 3.1113. The Court need not, and indeed does not, consider the portions of the City's opposition and Plaintiff's reply in excess of the page limit. The Court would note the City's opposition to the prior demurrer to the first amended cross-complaint was also over the limit at 17 pages, the Court considered the opposition. In any event, 19 pages is significantly over the page limit. <u>City's Request for Judicial Notice</u> The City requests judicial notice of its Second Amended Cross-Complaint and exhibits filed with this Court on 2/17/26. A court may take judicial notice of its own records. (Evid. Code, § 452, subd. (d).) While "[a] court may take judicial notice of the <i>existence</i> of each document a court file, [it] can only take judicial notice of the <i>truth</i> of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments." (<i>People v. Thacker</i> (1985) 175 Cal.App.3d 594, 599 [citation omitted, italics in original].)

The Court GRANTS the City's request for judicial notice.

The City's Allegations

On 5/1/15, the City entered into a written agreement with DVBE ASAP, Inc. (DVBE) for DVBE to provide hardscape and landscape services for the City during the fiscal year 2014 to 2015, including reconstruction of the sidewalk, curb and gutter, root pruning, clearing and grubbing of tree roots for concrete restoration. (SACC ¶¶ 3, 26, 27; Ex. A.) The agreement with DVBE contained a provision agreeing to indemnify the City for any injuries to the public in connection with performing the work. (FACC ¶ 44, Ex. A.)

USIC provided an insurance policy to DVBE (policy number SII0503B08670) covering DVBE's work at the subject location (the Policy). (FACC ¶ 38; Ex. H.) The Policy included the City as an "additional insured." (FACC ¶ 38, Ex. D.)

Plaintiff alleges she was injured in a trip and fall on 11/19/22 on a sidewalk located in Fullerton. (FACC ¶ 25.)

Whether the Alleged Injury Occurred Outside the Policy Period

USIC demurs on the grounds that Plaintiff's injury occurred outside the policy period. Specifically, USIC contends the Policy covers only bodily injury that occurs during the policy period, i.e. 1/16/15-1/16/16, and therefore does not cover injuries from Plaintiff's trip and fall on 11/19/22.

In doing so, USIC relies on Section I.1.b of the Policy: which provides: "This insurance applies to 'bodily injury' and 'property damage' only if: . . . The 'bodily injury' or 'property damage' occurs during the policy period." (SACC, Ex. H at p. 1 of 16.) The Policy's Common Policy Declarations sets forth the policy period as 1/16/15 through 1/16/16. (SACC, Ex. H at p. 1 of 4 of Common Policy Declarations.)

USIC also relies on amended Section I.1.b from the Amendment to Other Insurance Condition which provides: "This insurance applies to 'bodily injury' and 'property damage' only if: . . . The 'bodily injury' or 'property damage' first occurs or begins during the 'policy period.' 'Bodily injury' or 'property damage' first occurs or begins on the date when the 'bodily injury' or 'property damage' appears and is identified by the insured or another person. (SACC, Ex. H at p. 1 of 14 of Amendment.)

The City contends the Policy is an "occurrence based" policy, which provides coverage for damages that occur during the policy period, even if the claim is made after the policy expired, rather than a "claims based" policy, which provides coverage only if the claim is

made during the policy period. (Opp. at 11:12-16.) Accordingly, the City contends the Policy covers Plaintiff's injuries as "damage done to the sidewalk occurred at the time construction took place in 2015 and was within the policy's effective dates." (Opp. at 14:28-15:2.)

In doing so, the City again relies on *Century Indemnity Co. v. Hearrean* (2002) 98 Cal.App.4th 734 and *Guastello v. AIG Specialty Ins. Co.* (2021) 61 Cal.App.5th 97, which the Court previously found were inapposite. *Century Indemnity Co.* involved a claim for property damage to a hotel which the court found was continuous and progressive, stemming from defective design and construction that occurred during the policy period. (98 Cal.App.4th at p. 743.) Similarly, *Guastello* involved a claim for property damage caused by a collapse of a retaining wall where evidence suggested it collapsed due to improper work performed during the policy period. (61 Cal.App.5th at p. 106.)

Plaintiff does not allege property damage to, for example, the sidewalk resulting from negligent work performed during the policy period, but rather, personal injury resulting from a trip and fall. The Policy provides coverage if the bodily injury first "appears and is identified" during the policy period, not when any circumstances that may have contributed to the cause of the bodily injury first appear.

Plaintiff alleges that similar to the facts in *Century Indemnity Co.*, *supra*, 98 Cal.App.4th at p. 743, the occurrence-based Policy not only provides coverage for continuous damage to the sidewalk, but also to Plaintiff's alleged injuries that were not "manifested until after the expiration of the policy period." *Century Indemnity Co.* stated, however, "the trigger of coverage, the continuous and progressive injury to the hotel property caused by defective design and construction, occurred during the policy period and activated Century's defense and indemnity obligations." (98 Cal.App.4th at p. 743.) Thus, the injury at issue was property damage related to the allegedly defective construction, not bodily injury that was alleged to have somehow stemmed from the defective construction.

"When the complaint fails to allege that the terms of the contract have any special meaning, the court can construe the language of the document on its face to determine whether as a matter of law the contract is reasonably subject to a construction sufficient to sustain a cause of action in response to a demurrer. However, when the plaintiff alleges a meaning to the document that is reasonable in light of its terms, the court cannot grant a demurrer but must permit the admission of extrinsic evidence regarding the meaning of the document as intended by the parties." (*Hervey v. Mercury Casualty Co.* (2010) 185 Cal.App.4th 954, 962 [citations omitted].)

The City’s second amended cross-complaint does not allege any meaning to the provision stating, “‘Bodily injury’ or ‘property damage’ first occurs or begins on the date when the ‘bodily injury’ or ‘property damage’ appears and is identified by the insured or another person.”

The City does not address this specific provision in its opposition, but points to additional language that provides:

c. “Bodily injury” or “property damage” which occurs during the policy period and was not, prior to the policy period, known to have occurred by any insured listed under Paragraph 1. of Section II – Who Is An Insured or any “employee” authorized by you to give or receive notice of an “occurrence” or claim, includes any continuation, change or resumption of that “bodily injury” or “property damage” after the end of the policy period.

d. “Bodily injury” or “property damage” will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph 1. of Section II – Who Is An Insured or any “employee” authorized by you to give or receive notice of an “occurrence” or claim:

(1) Reports all, or any part, of the “bodily injury” or “property damage” to us or any other in-surer;

(2) Receives a written or verbal demand or claim for damages because of the “bodily injury” or “property damage”; or

(3) Becomes aware by any other means that “bodily injury” or “property damage” has occurred or has begun to occur.

(SACC, Ex. H at p. 1 of 16.)

While City emphasizes the phrase “after the end of the policy period” in subsection (c), it still refers to “Bodily injury” or “property damage” which occurs *during the policy period* but has continued, changed, or resumed after the end of the policy period.

Similarly, the City emphasizes the phrase, “Becomes aware by any other means that ‘bodily injury’ or ‘property damage’ has occurred or has begun to occur” in subsection (d). The City has not alleged, however, that it was aware of the bodily injury at some point during the policy period (nor could it as the incident occurred almost 7 years after the policy expired).

Thus, the Court considers the language of the provision on its face and finds it supports USIC’s contention that Plaintiff’s alleged injuries fall outside the Policy’s policy period as they appeared when the incident occurred on 11/29/22.

Accordingly, the Court SUSTAINS the demurrer to the first, third, fourth, fifth, sixth, seventh, eighth, ninth, and tenth causes of action

for failure to state facts sufficient to constitute these causes of action based on the above.

First Cause of Action for Express Indemnity and Defense as to USIC

USIC contends the City lacks standing to bring its action against USIC as an insurer of DVBE.

“Generally an insurer may not be joined as a party-defendant in the underlying action against the insured by the injured third party.” (*Royal Surplus Lines Ins. Co., Inc. v. Ranger Ins. Co.* (2002) 100 Cal.App.4th 193, 200, citation omitted.) “An additional insured has standing to sue an insurer for breach of contract and breach of the implied covenant.” (*Ibid.*) “If [a party] is an additional insured, then it is a first party.” (*Ibid.*)

The City has sufficiently alleged the Policy included the City as an “additional insured” (SACC ¶¶ 35, 38, Ex. D) such that it may bring its second amended cross-complaint against USIC. Accordingly, the Court overrules USIC’s demurrer on this ground.

Third Cause of Action for Breach of Contract as to USIC

“To state a cause of action for breach of contract, a party must plead the existence of a contract, his or her performance of the contract or excuse for nonperformance, the defendant’s breach and resulting damage.” (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 307 [citation omitted].)

USIC also contends the City’s third cause of action for breach of contract fails as to USIC because USIC is not a party to the contract. In support of this cause of action, Plaintiff alleges, “Pursuant to the DVBE/USIC (DVBE contract thereby USIC) Agreement attached hereto as EXHIBIT “A”, DVBE/USIC and ROES 1-10, and each of them, were obligated to perform certain work and services prior to the date of the subject incident, including pruning/grubbing the roots and creating a root barrier, then replace the sidewalk slab at the subject premises where the sidewalk damage of rising occurred as to the intended benefit of the public, including plaintiff and/or proximately causing injury to PLAINTIFF, for which the CITY is being sued. (SACC ¶ 77.)

Plaintiff further alleges, “DVBE/USIC and ROES 1-30, and each of them, breached said DVBE/USIC Agreement by failing to adequately prune and clear and grub the roots of the tree located adjacent to the subject premises and inadequately preparing a root barrier to prevent the root growth from re-damaging the sidewalk by causing the slab to rise and creating a differentiation between the two slabs of sidewalk and creating the condition alleged by plaintiff

		prior to reconstructing/replacing the sidewalk slab at the subject premises, as required under the DVBE Agreement. The negligent work of DVBE breached the agreement and thereby caused the ongoing damage to the sidewalk whereby it continued to lift, which is was specifically hired to prevent.” (SACC ¶ 78.) The Agreement itself states is between the “City of Fullerton” and “DVBE ASAP INC.” (Ex. A.) The City alleges multiple times in the SACC that the Agreement is between itself and DVBE: - “Agreement between CITY and DVBE” (SACC ¶ 3.) - “The CITY alleges that it entered into an Agreement with DVBE on or about May 1, 2015” (SACC ¶ 26.) - “Under the CITY’s agreement with DVBE, DVBE was responsible for” (SACC ¶ 27.) As the City has not alleged sufficient facts demonstrating USIC was also a party to the Agreement, the Court sustains USIC’s demurrer to the third cause of action on this ground.
12.	JOHNSON VS. LUK 2026-01545106	DEMURRER TO COMPLAINT DEMURRER TO COMPLAINT MOTION TO STRIKE - ANTI SLAPP MOTION TO STRIKE - ANTI SLAPP MOTION TO STRIKE As to all 5 motions there are no tentative rulings. Counsel to appear.
13.	ALARID VS. CAMARILLO 2024-01377164	MOTION TO COMPEL RESPONSE TO REQUESTS FOR ADMISSIONS SET ONE Plaintiff Dolores Alarid’s Motion to Compel Defendant Petra Camarillo’s Further Responses to Requests for Admission, Set One (RFAs) is DENIED. Plaintiff seeks further responses to 42 RFAs related to the subject collision. Defendant’s initial responses consist of objections with the statement, “Responding Party is unable to admit or deny this Request at this time.”